

Andhra Pradesh Municipalities (Preparation of Budget, Allotment and Transfer of Funds) Rules, 1967

Source: <https://indiankanoon.org/doc/174734478/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Andhra Pradesh - Act

Andhra Pradesh Municipalities (Preparation of Budget, Allotment and Transfer of Funds) Rules, 1967

ANDHRA PRADESH

India

Andhra Pradesh Municipalities (Preparation of Budget, Allotment and Transfer of Funds) Rules, 1967

Rule

ANDHRA-PRADESH-MUNICIPALITIES-PREPARATION-OF-BUDGET-ALLOTMENT-AND-TRANSFER-OF-FUNDS-RULES-1967 of 1967

Published on 18 August 1966

Commenced on 18 August 1966

[This is the version of this document from 18 August 1966.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Municipalities (Preparation of Budget, Allotment and Transfer of Funds) Rules, 1967

In exercise of the powers conferred by Clause (i) of sub-section (2) of Section 326 of the Andhra Pradesh Municipalities Act, 1965 (Act

6 of 1965

), the Governor of Andhra Pradesh hereby makes the following rules relating to Budget allotment and transfer of funds by municipal councils, the same having been previously published at pages 380 to 388 of Rules Supplement to Part I of the Andhra Pradesh Gazette, dated 18th August 1966, as required under Clauses (a) and (b) of sub-section (1) of

Section 527 of the said Act.

1.

These rules may be called the Andhra Pradesh Municipalities (Preparation of Budget Allotment and Transfer of Funds) Rules, 1967.

2.

(1)

The Commissioner shall in each year, prepare a budget estimate showing the probable receipt and expenditure during the coming year. He shall consult the Director of Public Instruction, Director of Medical and Health Services, the Chief Engineer of Public Health, the Director of Town Planning and the Special Officer, Indian Medicine Department in respect of matters concerning their departments. He shall also consult the Director of Industries in respect of matters concerning Industrial schools, if any.

(2)

The Municipal Engineer, Municipal Health Officer, Town Planning Officer and Education Officer shall prepare the estimates of receipts and expenditure concerning their departments and furnish the same to the Commissioner for incorporation in the budget estimate within the time stipulated by the Commissioner. They shall also furnish such other particulars as the Commissioner may require of them for the preparation of the budget estimate. The Commissioner shall adopt these figures with such modifications as the circumstances may justify.

3.

The working balance to be provided for in the budget shall be not less than five per cent of the estimated receipts of the year excluding those from endowments, Government grants and debt heads.

4.

(1)

The budget shall be prepared in Form 'A' appended to these rules.

(2)

The Commissioner shall append a certificate to the effect that provision has been made for the payment of interest on, and authorisation of debts raised by the Council both from the public and the Government and that no arrears of interest are pending for want of payment. He will also enclose a statement of outstanding debts with full details thereof.

(3)

The budget shall be prepared in English and Telugu.

5.

(1)

The Budget prepared in the manner prescribed above shall be circulated to the Councillors at least seven days before the date fixed for the consideration of the budget by the Council, and of the budget by the council, so that the members may have a reasonable opportunity of examining it before the said date.

(2)

The budget shall, after it has been circulated as provided in sub-rule (1) and after detailed scrutiny by the Executive Committee, be placed before the Council by the Commissioner ordinarily not later than the 15th of November. Provided that if the Executive Committee fails to scrutinise the budget within a week from the date of submission to it, the Commissioner may place the budget before the Council.

6.

An explanatory note on the budget with copies of the suggestions if any, of the officers referred to in Rule 2 and of the proceedings of the Executive Committee, shall also be placed by the Commissioner before the Council along with the budget.

7.

The Council shall, after satisfying itself on the following points, approve the budget with such modifications as it may deem necessary:

(1)

that the estimate of receipts is exhaustive and cautious.

(2)

that the recommendations, if any, of the officers referred to in Rule 2 have been duly considered in preparing the budget;

(3)

that due provision has been made for all obligatory charges.

(4)

that provision has been made for the due discharge of all liabilities in respect of loans contracted by the Council and for all other commitments; and

(5)

that the working balance is not less than the minimum specified in Rule 3.

8.

The Chairperson shall submit a copy of the budget as approved by the Council to the Government through the Collector and the Director of Municipal Administration not later than the [31st December] each year. He shall also forward a copy of the budget so approved to the Auditor appointed under Section 128 of the Andhra Pradesh Municipalities Act, 1965 within fifteen days of such approval. Any modifications made in the budget with reference to the orders, if any passed by the Government shall similarly be communicated to the Auditor and the Director of Municipal Administration.

9.

(1)

In case the Council fails to approve the budget with or without modification at the meeting held for the purpose, the same shall be placed again before the Council within a week for its approval. If the Council fails to approve the budget even at that meeting, the Chairperson shall submit a copy of the budget with his own remarks if any, to the Government through the District Collector and the Director of Municipal Administration for sanction. A copy of the same shall also be sent to the Auditor. The Government shall sanction the budget with or without modifications. The modifications, if any, made by the Government shall also be communicated to the Auditor and the Director of Municipal Administration.

(2)

The Council shall not re-appropriate the budget grants so fixed by the Government without their prior approval.

10.

The Council shall not authorise any item of expenditure not included in the budget or in excess of the budget allotment without indicating the source from which the money required for the proposed expenditure is to be found. Whenever the sanction of any authority as required for any proposed expenditure such sanction shall be obtained before the Council considers the proposal.

11.

The Commissioner shall pay prompt attention to the remarks, if any made by the auditor in regard to the expenditure as compared with the budget allotment.

12.

All allotments made in the budget shall lapse at the end of the year and no part of any allotment, remaining unexpended at the end of the year, shall be reserved or appropriated by transfer to deposits or any other head or drawn in order to avoid lapse for disbursements after the end of the year.

13.

All expenditure during the course of a year shall be regulated in accordance with the allotment made in the budget for the year, as sanctioned by the Council and as modified by the Government. Where an additional allotment under any head of account is subsequently found necessary, such additional allotment shall be made by re-appropriation from other heads, subject to the following conditions and limitations:-

(1)

all applications for re-appropriation shall be made in Form 'B' appended to these rules and shall be submitted to the Council by the Commissioner through the Executive Committee in time to admit of the Council passing orders on them before the end of the year; and

(2)

the Commissioner shall, within a week of the date on which the Council sanctions such application, forward a copy thereof to the auditor.

14.

Where it is found necessary to find additional allotments from balances of any kind-general, endowments, or other-they may be sanctioned by the Council subject to the following conditions and limitations:-

(1)

the working balance shall not be reduced below the minimum specified in Rule 3:-

(2)

application for allotment shall be made in Form `C' appended to these rules and shall be submitted to the Council by the commissioner through the Executive Committee in time to admit of the Council passing orders on them before the end of the year;and

(3)

the Commissioner shall, within a week of the date on which the Council sanctions any such application, forward a copy thereof to the auditor.

Related AI tags, queries and research notes

Translation